

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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LILLIAN MILLER,

Plaintiff,

**FIRST VERIFIED AMENDED
COMPLAINT**

-against-

Index No: 707329/2016

THE CITY OF NEW YORK; NYPD P.O. CANALE,
SHIELD NO 15509, NYPD SGT FABER, SHIELD NO
3723, NYPD SGT. MILLIGAN, SHIELD NO. 04735,
AND NYPD DET. BARRETT, SHIELD NO. 433; NYPD
P.O. JOHN/JANE DOES #1-10; the individual
defendants sued in their individual and
official capacities.

Date Filed: 5/19/2017

Basis of Venue
Location of Incident
QUEENS NY 11206

Jury Trial Demanded

Defendants.

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The plaintiff, by and through her attorneys, Adams & Commissiong
LLP upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983, and the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that occurred on or May 21, 2014. During the incident, the City of New York, Police Officers P.O. CANALE, SGT. FABER, SGT. MILLIGAN, DET. BARRETT and the New York City Police Department ("NYPD"), subjected plaintiff to, among other things, excessive force, unlawful search and seizure, and implementation and continuation of an unlawful

municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. §§ 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction and Venue are proper here because the acts in question occurred in Queens County, New York.

PARTIES

4. Plaintiff, LILLIAN MILLER, is a resident of the State of New York, Queens County.

5. At all times referred to herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

6. Defendant City of New York was the employer of the individual defendants, and is and was at all times relevant to this complaint responsible for the policies, practices and customs of the NYPD.

7. At all times alleged herein, defendants NYPD P.O. CANALE; SGT. FABER; SGT. MILLIGAN; DET BARRETT and NYPD P.O.

JOHN/JANE DOES #1-10, were New York City Police officers employed with the 113th precinct; or Emergency Service Unit, ("ESU") Truck 9, located in Queens County, New York, or other as yet unknown assignment who violated plaintiff's rights as described herein.

8. The individual defendant police officers are sued in their individual and official capacities.

STATEMENT OF FACTS

9. On May 21, 2014, at approximately 7:00 A.M., at and in the vicinity of 114-16 157th Street, Jamaica NY, NYPD P.O. CANALE; SGT. FABER; SGT. MILLIGAN; DET BARRETT and NYPD P.O. JOHN/JANE DOES # 1-10 entered plaintiff's home.

10. Upon information and belief they had a search warrant for plaintiff's home.

11. While entering plaintiff's home, the defendants maliciously and unnecessarily broke the door down.

12. The defendants entered the apartment with shields and helmets and guns drawn.

13. Once the defendants entered plaintiff's home, the plaintiff was not free to disregard the defendant's questions walk away or leave the scene.

14. Plaintiff was in her home sleeping when she was awakened by officers in her home screaming "hands up!, hands up!".

15. Plaintiff complied with this order and got out of her bed with her hands up.

16. Defendant NYPD P.O. CANALE without cause, maliciously, gratuitously and unnecessarily slammed plaintiff to the ground.

17. Plaintiff was in pain and could not move.

18. Plaintiff struggled to stand up.

19. Defendant NYPD P.O. CANALE then grabbed plaintiff by the arm and yanked her off the ground.

20. A female officer then came and handcuffed plaintiff.

21. Plaintiff was then taken downstairs.

22. Plaintiff asked the officers for a warrant, and defendant NYPD P.O. CANALE replied "I don't have to show you shit" or words to that effect.

23. One of the officers then took plaintiff's car keys out of her nightstand.

24. One of the officers searched plaintiff's car, and took the keys and put the keys in the mailbox.

25. Upon information and belief there was no warrant to search plaintiff's car.

26. The defendant officers committed excessive force against Plaintiff by maliciously, gratuitously, and unnecessarily grabbing her and slamming her to the ground.

27. The defendant officers did not have an objective and/or reasonable basis to use any degree of force against Plaintiff, since Plaintiff was unarmed, compliant, and did not resist arrest.

28. Plaintiff was physically injured as a result of the excessive use of force.

29. Upon information and belief Defendant's SGT. FABER; SGT. MILLIGAN; DET BARRETT and NYPD P.O. JOHN/JANE DOES # 1-10 were present when defendant P.O. CANALE used excessive force against plaintiff, and failed to intervene to stop this illegal and unconstitutional act.

30. The aforesaid violations of plaintiff's rights are not an isolated incident. Defendant City of New York is aware from lawsuits, notices of claim and complaints that many members of the NYPD are insufficiently trained on the proper way not to use excessive force.

31. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, the City of New York has failed to take corrective action. This failure caused the defendants to violate plaintiff's rights and injure plaintiff.

32. Moreover, defendant City of New York was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition

to be employed. Despite such notice, defendants has retained these individuals, and failed to adequately train and supervise them.

33. At all times defendant City of New York by the NYPD and its agents, servants and/or employees, carelessly, and recklessly trained the individual defendants for the position of police officers.

34. At all times defendant City of New York by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly supervised, controlled, managed, maintained and inspected the activities of the individual defendants.

35. At all times defendant City of New York by the NYPD and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

36. At all times defendant City of New York by the NYPD and its agents, servants and/or employees carelessly, and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

37. The occurrence(s) and injuries sustained by plaintiff, were caused solely by, and as a result of the

malicious, reckless, and/or intentional conduct of defendant City of New York, and the NYPD and its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained the individual defendants.

38. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

39. The plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incident.

40. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

41. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said

defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

42. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

43. The individual defendants, at times acted in concert, and at times acted independently in committing the aforementioned illegal acts against plaintiff.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE AND ENTRY UNDER FEDERAL LAW)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants unlawfully searched plaintiff, and entered and searched her car without a warrant, or consent.

46. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

SECOND CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein

48. Defendants arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

49. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

THIRD CLAIM

(EXCESSIVE FORCE)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. The defendant police officer's use of force upon plaintiff, as described herein, and the individual defendant police officers' failure to intervene, was objectively unreasonable.

52. Accordingly, the police officers are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(MONELL CLAIM)

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

55. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers and prosecutors who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

56. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

57. Further, defendants City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence, and use excessive force on them.

58. In addition, the following are municipal policies, practices and customs: (a) arresting innocent

individuals; and (b) committing excessive force against individuals.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

(a) Compensatory damages in an amount to be determined by a jury; (b) Punitive damages in an amount to be determined by a jury; (c) Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and (d) Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
May 19, 2017

Adams & Commissiong LLP

By:



MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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LILLIAN MILLER,

Plaintiff, VERIFICATION

-against-

Index No: 707329/2016

THE CITY OF NEW YORK; NYPD P.O. CANALE, SHIELD NO 15509, NYPD SGT FABER, SHIELD NO 3723, NYPD SGT. MILLIGAN, SHIELD NO. 04735, AND NYPD DET. BARRETT, SHIELD NO. 433; the individual defendants sued in their individual and official capacities.

Date Filed: 5/19/2017

Defendants.

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STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to practice law in the State of New York, hereby affirms pursuant to the C.P.L.R. and subscribing as true under the penalties of perjury as follows:

That the Affirmant is a member of the law firm Adams & Commissiong LLP, the attorneys of record for the plaintiff in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the contents thereof; that the same is true to his knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of the plaintiff is because the plaintiff does not reside within the County in which the firm of Adams & Commissiong LLP maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint not stated to be upon his knowledge are based upon conversations with plaintiff, and a review of records related to this action.

DATED: New York, New York
MAY 19, 2017



MARTIN E. ADAMS, ESQ